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Situation of human rights in the Islamic Republic of Iran

Report of the Special Rapporteur on the situation of human rights in the Islamic Republic of Iran

Note by the Secretary-General

The Secretary-General has the honour to transmit to the General Assembly the report of the Special Rapporteur on the situation of human rights in the Islamic Republic of Iran, Javaid Rehman, submitted in accordance with Human Rights Council resolution 40/18.

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Report of the Special Rapporteur on the situation of human rights in the Islamic Republic of Iran

Summary

The Special Rapporteur on the situation of human rights in the Islamic Republic of Iran, Javaid Rehman, submits his second report to the General Assembly pursuant to Human Rights Council resolution 40/18. The present report is based on a range of consultations held with interlocutors and missions undertaken by the Special Rapporteur over the past year to Frankfurt (4–6 November 2018), Brussels (26 February–1 March 2019), Geneva (8–12 March 2019) and The Hague and Vienna (2–8 June 2019).

I. Introduction

1. The present report is submitted pursuant to Human Rights Council resolution 40/18. It provides a detailed examination of the human rights situation in the Islamic Republic of Iran, with a focused analysis of the situation of ethnic and religious minorities. In the past year, the Special Rapporteur met victims of alleged violations, their families, human rights defenders, lawyers and representatives of civil society organizations in Frankfurt (4–6 November 2018), Brussels (26 February–1 March 2019), Geneva (8–12 March 2019) and The Hague and Vienna (2–8 June 2019). He also met representatives of the Islamic Republic of Iran in Geneva and New York and a delegation of senior officials, including members of the judiciary, in Geneva earlier in 2019.

2. The Special Rapporteur has reviewed written submissions and information from a range of sources, including non-governmental organizations (NGOs), human rights defenders, various Governments and media organizations, fully in accordance with the code of conduct for special procedures mandate holders of the Human Rights Council. He thanks all those who extended their time and cooperation. He also thanks the Government of the Islamic Republic of Iran and its representatives for engaging with the mandate holder and his reports and for providing extensive comments to the report, which were taken into account to the extent possible. He has highlighted on a number of occasions the significance of having access to the country and reiterates his request to the Islamic Republic of Iran to allow him to undertake such visits.

3. This past year has seen a number of distressing factors having an impact on the overall human rights situation in the Islamic Republic of Iran. Flash floods from mid-March to April 2019 affected millions of individuals throughout the 19 provinces, including in the worst-hit areas of Golestan, Khuzestan, Mazandaran and Lorestan Provinces. The flooding left entire towns and villages under water, damaging residential areas, public infrastructure, agriculture and drainage networks, harming livestock and triggering the displacement of thousands of families. The Government has estimated damages in the health sector at approximately $300 million and $1.5 billion in the agricultural sector.[1] In its comments, the Government noted that all departments, aid organizations, the armed forces, government officials, the Red Crescent and rescue workers had stood beside the people to contain the floods. It also referred to the efforts of the Government to promptly compensate flood damage through financial credits.

4. The negative impact of the reimposition of economic sanctions by the United States of America in November 2018 has also been felt strongly by ordinary Iranians. The sanctions have hit oil sales, imposed wide-ranging restrictions on traders and businesses and triggered the devaluation of the Iranian currency. All these factors have contributed to raising the scale of austerity and pushing inflation higher. Rising levels of unemployment and poverty have also adversely affected the rights to health and education and access to other basic services for millions of Iranians.[2]

5. Increasing restrictions on the right to freedom of expression and continuing patterns of violations of the right to life, the right to liberty and the right to a fair trial have been reported.[3] The Iranian judiciary has continued to implement the death penalty, including on child offenders.[4] Besides the recent release of Nizar Zakka,[5]

[1] See https://reliefweb.int/report/iran-islamic-republic/floods-iran-un-support-government-led-efforts-help-affected-people.
[2] See www.imf.org/en/Countries/IRN.
[3] See www.ohchr.org/EN/NewsEvents/Pages/DisplayNews.aspx?NewsID=24297&LangID=E.
[4] See www.ohchr.org/EN/NewsEvents/Pages/DisplayNews.aspx?NewsID=24550&LangID=E.
[5] See www.bbc.com/news/world-middle-east-48593391.

there has been no progress made in the cases of arbitrarily detained foreign or dual nationals. Human rights defenders, members of minority communities, lawyers, journalists, including journalists with the British Broadcasting Corporation (BBC) Persian service, labour and trade union activists and women protesting the compulsory veiling law have continued to be intimidated, harassed, arrested and detained.

6. In March 2019, Ebrahim Raisi was appointed as the head of the judiciary by the Supreme Leader, Ayatollah Ali Khamenei.

II. Overview of the situation of human rights in the Islamic Republic of Iran

A. Death penalty and right to a fair trial

Use of the death penalty

7. The Special Rapporteur remains deeply concerned at the continued use of the death penalty in of the Islamic Republic of Iran. In 2018, it is reported that at least 253 people were executed.[6] While this is the lowest reported figure in the country since 2007, the number of executions remains the one of the highest in the world. The significant decline in the number of executions in 2018 is attributed to the enforcement of the 2017 amendment to the anti-narcotics law, which is believed to have reduced the number of executions for drug-related offences. In 2018, at least 24 people were executed for drug-related offences, compared with 231 in 2017.[7] At least 79 people have reportedly been executed in the country in 2019, as at 31 May.[8]

8. Of concern are charges punishable by death sentences that do not constitute the most serious crimes as stipulated in article 6 of the International Covenant on Civil and Political Rights. The Islamic Penal Code has more than 80 offences punishable by the death penalty, including adultery, homosexuality, drug possession, waging war against God, corruption on Earth, blasphemy and insult of the Prophet.[9]

9. At least 38 prisoners were hanged on charges of *moharebeh* (waging war against God) or *efsad-e fel-arz* (corruption on Earth) in 2018.[10] Among them, 18 were charged with *moharebeh* for involvement in armed robbery, 3 for affiliation with banned Kurdish groups, 3 for affiliation with banned Baluchi militant groups, 8 for cooperation with the Islamic State in Iraq and the Levant, 3 for "economic corruption" and 1 for being the leader of a "fake" spiritual group. In its comments, the Government interpreted *moharebeh* as a criminal act using lethal weapons against other individuals or the public in general. The Special Rapporteur also has concerns about allegations of confessions extracted by torture and a lack of due process or a fair trial.

Execution of child offenders

10. In 2018, there were seven reported cases of executions of child offenders. There are currently an estimated 90 individuals on death row who were all under the age of 18 at the time of their alleged offences. Among the most recent cases, on 25 April 2019, two 17-year-old children, Mehdi Sohrabifar and Amin Sedaghat, were executed

[6] See www.amnesty.org/en/latest/news/2019/04/death-penalty-dramatic-fall-in-global-execution/.
[7] See https://iranhr.net/en/articles/3666/.
[8] See www.iranrights.org/; www.iranhr.net/en/articles/3726/.
[9] See A/73/398; Islamic Penal Code, art. 286.
[10] See https://iranhr.net/en/articles/3657/.

for the alleged crimes of rape and robbery in Adelabad prison in Shiraz, Fars Province. The two were reportedly forced to confess under torture.[11]

11. The position of special procedures mandate holders and the United Nations High Commissioner for Human Rights on child offender executions has been unequivocal. They have stated that this practice is absolutely prohibited and must end immediately.[12] In his March 2019 report, the Special Rapporteur conducted an in-depth analysis on the execution of child offenders in the Islamic Republic of Iran and made a number of specific recommendations addressed to the Iranian parliament and judiciary outlining the steps needed to bring this practice to an end (A/HRC/40/67, paras. 72–76).

B. Arbitrary arrests and detention

Dual and foreign nationals

12. The Special Rapporteur welcomes the release by the Iranian authorities, on 11 June 2019, of Nizar Zakka, a Lebanese businessman with residency in the United States, who was imprisoned in 2015 for 10 years on charges of spying for the United States. He remains deeply concerned, however, by the arbitrary arrest, detention, ill-treatment and denial of appropriate medical treatment of dual and foreign nationals in the Islamic Republic of Iran. There are estimated to be at least 30 such cases, including Nazanin Zaghari-Ratcliffe,[13] Xiyue Wang,[14] Ahmadreza Djalali, Siamak and Baquer Namazi, and Kamran Ghaderi, an Iranian-Austrian dual national detained in Iran since January 2016 and suffering from a tumour in his leg.[15] In its comments, the Government noted that those individuals had received medical treatment under the constant supervision of physicians and had been referred to specialized medical centres. The Government also noted that a request for pardon and amnesty for Mr. Ghaderi had been registered with the Amnesty and Forgiveness Commission of Tehran Province.

13. The Islamic Republic of Iran has subjected these individuals to sham trials, which have failed to meet basic fair trial standards, and convicted them of offences on the basis of fabricated evidence or, in some cases, no evidence at all, and has attempted to use them as diplomatic leverage.[16]

14. On 2 December 2018, six families issued an open letter raising their concerns regarding the arbitrary detention of their family members, which they consider to be "hostage-taking".[17] Nazanin Zaghari-Ratcliffe, who had been granted diplomatic protection by the Government of the United Kingdom of Great Britain and Northern Ireland early in March 2019, undertook her third hunger strike in prison from 15 to 29 June 2019 to protest against her continued detention. Her husband, in protest against her continued detention, also joined the hunger strike, camping outside the

[11] See www.ohchr.org/en/NewsEvents/Pages/DisplayNews.aspx?NewsID=24581&LangID=E.
[12] See www.ohchr.org/EN/NewsEvents/Pages/DisplayNews.aspx?NewsID=24188&LangID=E; www.ohchr.org/EN/NewsEvents/Pages/DisplayNews.aspx?NewsID=24550&LangID=E.
[13] See www.ohchr.org/en/NewsEvents/Pages/DisplayNews.aspx?NewsID=24073&LangID=E.
[14] See www.ohchr.org/EN/NewsEvents/Pages/DisplayNews.aspx?NewsID=24572&LangID=E.
[15] See www.iranhumanrights.org/2018/12/dual-national-imprisoned-in-iran-kamran-ghaderi-struggling-to-access-medical-treatment/.
[16] The prospect of a prisoner exchange of foreign nationals was raised in the context of the discussion held on 24 April 2019 between the Foreign Minister of the Islamic Republic of Iran, Javad Zarif, and the President and Chief Executive Officer of the Asia Society, Josette Sheeran. (see https://asiasociety.org/video/iran-minister-foreign-affairs-mohammad-javad-zarif-complete). See also www.theguardian.com/news/2019/apr/25/iranian-minister-drops-offer-to-free-zaghari-ratcliffe-in-swap.
[17] See https://iranhumanrights.org/2018/12/open-letter-by-six-families-of-dual-and-foreign-nationals-imprisoned-in-iran/.

Iranian Embassy in London.[18] On 15 July, Ms. Zaghari-Ratcliffe was transferred from Evin prison to a psychiatric ward of Imam Khomeini hospital in Tehran under close surveillance by the Revolutionary Guard and without access to her family.[19]

Human rights lawyers

15. On 11 March 2019, human rights defender and lawyer Nasrin Sotoudeh was sentenced to 38 years in prison and 148 lashes, including in relation to her work defending women charged for protesting against the compulsory hijab. In June, more than 1 million people joined a global campaign to demand that the Government release Ms. Sotoudeh.[20] In its comments, the Government noted that, "according to the provisions of Article 134 of the Islamic Penal Code, the highest enforceable punishment was 12 years' imprisonment". The Government also stated that Ms. Sotoudeh had been charged with promoting corruption and depravity. The Special Rapporteur notes that 12 years' imprisonment is the single highest enforceable punishment among all the convictions for which she has been found guilty.

16. Human rights lawyers have faced increasing levels of intimidation, arrest and detention for providing legal counsel to dissenting voices.[21] Since September 2018, at least eight prominent lawyers have been arrested for defending political prisoners and human rights defenders.[22] On 1 June 2019, Amirsalar Davoudi was sentenced to 30 years in prison and 111 lashes for his human rights work, including publicizing violations through a channel that he had set up on the Telegram mobile messaging app and giving media interviews.[23] He became the third known defence attorney in less than one year to be given a lengthy prison term, in his case for the content of social media posts.[21] In its comments, the Government noted that Mr. Davoudi had been charged with "insulting the Supreme Leader as well as assembly and collusion for committing a crime against domestic and foreign security and propaganda activity against system of the Islamic Republic".

17. In addition to Amirsalar Davoudi and Nasrin Sotoudeh, Mohammad Najafi is currently serving a three-year prison sentence and facing a total of 19 years in prison.[22] In its comments, the Government noted that Mr. Najafi had been charged with "dissemination of lies and defamation against the government and disturbing public opinion; disturbing public order; transferring information and news of the country abroad; formation of groups and collective leadership in order to disturb security of the country; membership in hostile groups with the purpose of disturbing security of the country; assembly and collusion to disturb security of the country; propaganda against the State; and insulting the Supreme Leader".

18. In a separate case, in February 2019, Massood Shamsnejad, a professor and lawyer, was sentenced to six years in prison for propaganda against the State after he had represented several Iranian Kurdish political prisoners.[24] In its comments, the Government noted that Mr. Shamsnejad had been charged with "membership in hostile groups, with the purpose of disturbing the security of the country; and propagation

[18] See www.iranhumanrights.org/2019/06/richard-ratcliffe-takes-hunger-strike-for-wifes-freedom-to-irans-doorstep-in-london/.

[19] See www.iranhumanrights.org/2019/07/zaghari-ratcliffe-transferred-to-psychiatric-ward-held-incommunicado/.

[20] See www.amnesty.org/en/latest/news/2019/06/more-than-1-million-people-join-global-campaign-to-demand-iranian-government-release-nasrin-sotoudeh/.

[21] See www.en-hrana.org/annual-report-of-prosecuted-lawyers-in-iran.

[22] See https://iranhumanrights.org/2019/06/iran-three-rights-lawyers-sentenced-to-lengthy-jail-terms-in-less-than-a-year/.

[23] See www.amnesty.org/en/latest/news/2019/06/iran-sentencing-of-human-rights-lawyer-to-30-years-in-prison-and-111-lashes-a-shocking-injustice/.

[24] See www.omct.org/human-rights-defenders/urgent-interventions/iran/2019/02/d25250/.

activities in favor of the terrorist group". It also noted that the verdict upon appeal had been referred to the branch of the provincial Court of Appeal, pending a final decision.

C. Right to freedom of association and assembly

Organized protests

19. The past year has seen the stepping up of pressure by Iranian authorities against trade unionists and other workers protesting for their labour rights. Truck drivers, teachers and factory workers have been intimidated, arrested and charged with offences ranging from "spreading propaganda against the state" to "disrupting public order and peace by participating in illegal gatherings", resulting in sentences of prison terms and flogging.[25] On 1 May 2019, an estimated 35 May Day demonstrators, mostly members of the Tehran Bus Drivers' Union, but also journalists, were reportedly beaten before being arrested and taken into custody.[26]

20. The Haft Tappeh sugar mill workers' protests in Ahvaz, Khuzestan Province, resurfaced in May 2019 when a joint indictment was issued for five journalists and two labour activists, including Sepideh Qoliyan, the editor-in-chief of the Gam independent Telegram app news channel, Amir Hossein Mohammadifard, his colleague and wife Sanaz Allahyari, and two staff reporters, Ali Amirgholi and Asal Mohammadi, as well as worker's rights activists Esmail Bakhshi and Ali Nejati.[27]

21. All of them have been charged with "assembly and collusion against national security", "forming groups with the intention to disturb national security" and "contacts with anti-state organizations". Sepideh Qoliyan and Esmail Bakhshi face additional charges of "disturbing public opinion" and "publishing falsehoods". Ms. Qoliyan has reportedly been sent to Gharchak prison, where she reportedly remains detained in solitary confinement. No date has reportedly been set for their trial.[28]

22. In June 2019, a group of Haft Tappeh workers submitted an official complaint to the International Labour Organization regarding the ongoing suppression of protests and the detention of peaceful demonstrators and journalists.[29]

D. Right to freedom of expression and opinion

Women human rights defenders

23. Protests against compulsory veiling laws in Iran by women activists went viral on social media over the past year with the spread of the #whitewednesdays campaign and "Girls of Revolution Street" protests. At the same time, this has led to at least 32 arrests since January 2018, mostly of women charged with national security-related crimes such as "collusion and conspiracy", "encouraging prostitution by promoting being unveiled" and "propaganda against the regime".[30] In its comments, the Government noted that "coverage requirements or code of cover exists in the countries of the world, in a way or another, and they are even defined for different

[25] See www.amnesty.org/download/Documents/MDE1302592019ENGLISH.PDF.
[26] See https://cpj.org/2019/05/iran-jailing-2-journalists-since-may-day-demonstra.php.
[27] See https://iranhumanrights.org/2019/05/seven-to-face-trial-in-connection-with-labor-protests/.
[28] See www.iranhumanrights.org/2019/02/intelligence-ministry-denies-labor-activists-qoliyan-and-bakhshi-medical-treatment/.
[29] See https://iranhumanrights.org/2019/06/haft-tappeh-workers-send-written-appeal-to-international-labor-organization/.
[30] See https://iranhumanrights.org/2019/05/icon-of-irans-hijab-protest-movement-vida-movahedi-released-from-prison/.

places and occasions". It also stated that "adherence to the law preserves public order and public security, and violations are prosecuted".

24. The cases of Yasaman Aryani, Monireh Arabshahi and Mojgan Keshavarz are emblematic of the repression of Iranian women who peacefully advocate their rights. In April 2019, the three women were arrested after they had appeared in an online video on International Women's Day protesting against the compulsory veiling laws. In the video, the three women are seen without their headscarves, embracing commuters and handing out flowers on the Tehran metro. Ms. Aryani, Ms. Arabshahi and Ms. Keshavarz are still in detention. Under the country's compulsory veiling laws, women and girls are required to wear a headscarf (article 638 of the Islamic Penal Code). Punishments for women who do not wear a veil include a prison sentence, flogging or a fine.[31] In its comments, the Government noted that the aforementioned individuals had been found guilty of charges under articles 500, 513, 610 and 639 of the Islamic Penal Code and article 265 of the Code of Criminal Procedure.

Journalists and media workers

25. The Special Rapporteur continued to received reports of arrests and intimidation of journalists and media workers both inside and outside the country. Staff of the BBC Persian service and their families have continued to suffer from long-standing harassment and persecution by the Iranian authorities, including personal and gendered attacks through social media, in particular against female BBC Persian staff. Besides the impact of the asset freeze, they have also more recently reportedly experienced reprisals as a result of engagement with United Nations human rights mechanisms. This has allegedly involved family members of a staff member being warned by Iranian officials about participating in United Nations advocacy work; Iranian officials following BBC Persian staff after their address to the Human Rights Council and warning them that raising their case at the United Nations was considered "anti-Iranian"; and Iranian officials monitoring their movements and advocacy work, even in private meetings.

26. BBC Persian staff and their legal team reportedly continue to hold grave fears about further risks to the liberty and security of staff members should they return to the Islamic Republic of Iran, as well as for their families who remain in the country. In its comments, the Government, while making vague and unsubstantiated assertions, noted that the BBC had "perpetrated many destructive activities beyond the sphere of media activity". The Government also confirmed that "the Public Prosecutor's Office issued a temporary injunction ordering a ban on the transaction of some of the employees of the network in Iran". It noted that "a number of those individuals had been acquitted from the ban and that there were a number of other open cases".

E. Impact of sanctions

27. On 5 November 2018, the United States Department of the Treasury completed the reimposition of the remaining United States nuclear-related sanctions previously lifted or waived in connection with the signing of the Joint Comprehensive Plan of Action. This resulted in sanctions being reimposed with effect on more than 700 individuals, entities, aircraft and vessels. It also included the designation on the sanctions list of 50 Iranian banks and their foreign and domestic subsidiaries, 200 persons and vessels in the shipping and energy sectors of the Islamic Republic of Iran, and an Iranian airline and more than 65 of its aircraft.[32] The sanctions have hit

[31] See www.amnesty.org/en/latest/campaigns/2019/05/iran-abusive-forced-veiling-laws-police-womens-lives/.

[32] See https://home.treasury.gov/news/press-releases/sm541.

oil sales, imposed wide-ranging restrictions on traders and businesses and significantly contributed to a devaluation of the currency and inflation.[33] The United States Department of State estimated that their sanctions have denied the Iranian authorities direct access to more than $10 billion in oil revenue alone since May 2018.[34] The International Monetary Fund estimates an inflation rate of 37.2 per cent, the highest in two decades, and projects real gross domestic product to contract by 6 per cent in 2019.[2] This is likely to exacerbate unemployment, which is already at a relatively high 15.4 per cent.[35] On 25 June 2019, the United States announced the imposition of additional sanctions on Ayatollah Ali Khamenei and eight Iranian military commanders.[36]

28. Only a small number of European banks with no or little interaction with the United States appear to be still doing business with the Islamic Republic of Iran, and they were involved only in small-scale purchases. The United States company Cargill and Bunge, as well as Olam of Singapore, are among those companies that could not conclude new export deals for wheat, corn, raw sugar or other commodities because Western banks would not process payments with the Islamic Republic of Iran.[37] The Special Rapporteur had meetings with relevant stakeholders from the country concerning the impact of sanctions, specifically on the right to health and access to medication. He is not only concerned that sanctions and banking restrictions will unduly affect food security and the availability and distribution of medicines, pharmaceutical equipment and supplies, but is also concerned at their potential negative impact on United Nations and other operations and programmes in the country.[38] In its comments, the Government noted that sanctions on the aeronautical industry seriously jeopardized the security of flights of Iranian passenger aircraft. It also noted that reduced government revenue as a result of sanctions would affect the situation of refugees in the country.

III. Ethnic and religious minorities

Introduction

29. The Special Rapporteur has consistently raised concerns in past reports regarding the human rights situation of ethnic and religious minorities in the Islamic Republic of Iran. Human rights violations affecting many of the ethnic and religious minority groups include the arbitrary deprivation of life and extrajudicial executions; a disproportionate number of executions on national security-related charges; a disproportionate number of political prisoners; arbitrary arrests and detention in connection with a range of peaceful activities such as advocacy for linguistic freedom, organizing or taking part in peaceful protests and being affiliated with opposition parties; incitement to hatred and violence; the forced closure of businesses and discriminatory practices and denial of employment; and restrictions on access to education and other basic services (see A/HRC/40/67 and A/73/398).

30. While some of the human rights issues are specific to one ethnic or religious minority, minority communities in the Islamic Republic of Iran, as elsewhere, have overlapping ethnic, linguistic and religious identities that can result in significant

[33] See www.bbc.com/news/world-middle-east-48119109.
[34] See www.state.gov/advancing-the-u-s-maximum-pressure-campaign-on-iran/.
[35] See www.imf.org/external/datamapper/LUR@WEO/OEMDC/ADVEC/WEOWORLD/IRN. See also www.ft.com/content/ac599cf4-6a72-11e9-80c7-60ee53e6681d.
[36] See www.nytimes.com/2019/06/24/us/politics/iran-sanctions.html.
[37] See https://uk.reuters.com/article/uk-iran-nuclear-food-exclusive/exclusive-global-traders-halt-new-iran-food-deals-as-u-s-sanctions-bite-sources-idUKKCN1OK1P4.
[38] See https://edition.cnn.com/2019/02/22/middleeast/iran-medical-shortages-intl/index.html.

intersectional discrimination. Iranian authorities do not collect or publish disaggregated data that would enable an analysis of the full extent of such intersectionality. The Special Rapporteur also recognizes that the present report does not provide a comprehensive or exhaustive account of the situation of human rights affecting all the ethnic and religious minority groups in the country.

A. Applicable international legal framework

31. The Islamic Republic of Iran, as a party to the International Covenant on Civil and Political Rights, the International Covenant on Economic, Social and Cultural Rights and the Convention on the Rights of the Child, is under an obligation to prohibit discrimination on the basis of, among other things, race, religion, ethnicity or language. In addition, article 18 of the International Covenant on Civil and Political Rights guarantees to everyone the right to freedom of religion or belief, while article 27 affirms that persons belonging to minorities shall not be denied the right, in community with other members of their group, to enjoy their own culture, to profess and practise their own religion or to use their own language. Guarantees of non-discrimination of economic, social and cultural rights are further embedded in the International Covenant on Economic, Social and Cultural Rights.

B. National legal framework applicable to religious minorities

32. The Constitution of the Islamic Republic of Iran, promulgated in 1979 (amended in 1989), establishes the Twelver Ja'fari School of Shi'a Islam as the official State religion. According to article 13, Christians, Jews and Zoroastrians are the only recognized religious minorities. These religious groups are free to perform their religious ceremonies "within the limits of the law". Article 23 forbids the investigation of individuals' beliefs and states that "none may be molested or taken to task simply for holding a certain belief", although as evident in articles 4, 10, 14, 20, 24, 26, 27 and 28 of the Constitution, a number of rights granted under the Constitution remain highly restrictive and qualified by the "compliance with Islam" criteria.

33. The provisions of article 14 of the Constitution deny rights for any person who has "conspired or acted against Islam and the Islamic Republic of Iran", thereby making contingent the availability of fundamental human rights only upon satisfying the criteria as laid out in article 14. Article 19 does not mention religion as a prohibiting criterion for discrimination, thereby sanctifying discrimination in law and in practice against religious minorities.

34. The absence of constitutional and legal recognition for non-recognized minorities entails denials of fundamental human rights for their followers. Left outside the national legal framework, unrecognized minority religious groups such as Baha'is, Christian converts, Sufis, including the Gonabadi order, Yarsanis and the Sabean-Mandaeans, are the targets of discriminatory legislation and practices.

35. Even for the recognized religious minorities, there is no provision under the legal system of the Islamic Republic of Iran permitting conversions from Islam, which is considered apostasy. This puts Christian converts from Islam at risk of persecution. Apostasy is not codified as an Islamic Penal Code offence, but conversion from Islam is punishable by death.[39] In order to circumvent the codification of apostasy as an offence, judges and prosecutors have reportedly relied upon article 167 of the Constitution that explicitly instructs judges to utilize Islamic legal sources where

[39] See www.loc.gov/law/help/apostasy/index.php#iran.

crimes or punishments are not covered by the Penal Code.[40] In relation to apostasy, the Government noted in its comments that the public promotion of disbelief and deviation, which leads to the disruption of public order and security of the society, is a crime.

36. Examples of discriminatory legislation include the criteria for an admissible witness within the Islamic Penal Code, which contains an unspecified requirement of "faith" under article 177 (c). Article 176 stipulates that, "if the witness does not meet the requirements provided for an admissible testimony under Shari'a rules, his/her statements shall be heard. [However,] such statements shall be regarded as judicial signs (hearsay evidence) and the validity and weight given to them in the knowledge of the judge shall be decided by the court". This requirement clearly discriminates against testimonies provided by unrecognized religious minorities.

37. The Special Rapporteur expresses concern that adultery and same-sex relations between consenting adults is not only criminalized, but also may result in the death penalty. Articles 224 (c) and 301 of the Islamic Penal Code also prescribe different penalties depending on the religion of the perpetrator and/or the victim of some crimes. In cases of sodomy involving men, the death penalty is imposed against the "passive party" in all cases and the "active party" if he is either married or if a non-Muslim man engages in such acts with a Muslim (arts. 234 and 236 of the Penal Code). The Government, in its comments, noted that, from the point of view of the Shari'a, the foundation of family is "of particular importance" and that the "establishment of sexual relation between two individuals of the same gender prevents survival of the human race and shakes and diminishes foundations of the family … such unconventional illegal acts are completely promiscuous and totally rejected".

38. Furthermore, a non-Muslim man regardless of his marital status is considered to have committed adultery when he has sexual intercourse with a Muslim woman and is subject to the death penalty (art. 224 (c) of the Islamic Penal Code). A Muslim man, on the other hand, must be married for the death penalty to be applied, and the state of being married is subject to broad exemptions, thereby providing exceptions to the enforcement of the death penalty (arts. 225–227). The punishment for adultery for a Muslim man with a Muslim woman is 100 lashes (art. 225). If a Muslim man commits adultery with a non-Muslim woman, the Penal Code does not specify any penalty. In response, the Government noted that, according to Islam, sexual relations between a man and a woman are permissible only through the contract of marriage.

39. The Islamic Penal Code sanctions the practice of *qisas* (retribution in kind), which, in cases of murder, allows the family of the murder victim to demand the execution of the alleged murderer or to forgive through the acceptance of compensation in the form of *diyeh* as blood money. Unrecognized religious minorities, however, do not have the right to enforce *qisas* or *diyeh* (art. 310 of the Penal Code). If a follower of an unrecognized religion is a victim of murder, the family of the victim is unable to either enforce the death penalty or ask for blood money as compensation (arts. 289–310 and 548; see also A/HRC/40/24, p. 5).

40. Discriminatory elements of the legal framework of the Islamic Republic of Iran have an impact on the daily lives of religious minorities. Article 881 of the Civil Code bars non-Muslims from inheriting property from Muslims. In addition, if a non-Muslim leaves a Muslim heir, the Muslim heir is entitled to the entire inheritance, including the shares of non-Muslim heirs, regardless of these individual's relationship with the deceased.

[40] Eleventh Circuit Criminal Courts of Appeal for Gilan Province, judgment in the case of Youcef Nadarkhani, Case No. 8809981314800697. See www.uscirf.gov/https%3A//www.uscirf.gov/youcef-nadarkhani.

41. Minorities, in particular non-recognized religious minorities, face serious hurdles in obtaining public sector employment, which is based on the *gozinesh* process,[41] which involves investigations conducted by the Supreme Selection Council and the Ministry of Intelligence into the acceptability of an applicant's beliefs, previous political opinions and affiliations, and repentance of any former political opinions and affiliations set forth in the Selection Law based on Religious and Ethical Standards of 1995.[42]

42. These requirements are intended to ensure that applicants adhere to and have knowledge of Islam, follow the theory of *Velayat-e-faqih* (rule of an Islamic jurist under Shi'ite Islam) and are loyal to the Islamic Republic of Iran. Minorities unable or unwilling to accept the requirements are excluded from any possibility of employment in the public sector. Private employers have also reportedly followed the guidelines of the *gozinesh* requirements, thereby discriminating against potential non-Muslim employees. The *gozinesh* requirements are a violation of the International Covenant on Civil and Political Rights, the International Convention of the Elimination of All Forms of Racial Discrimination and the International Covenant on Economic, Social and Cultural Rights, as well as a violation of article 23 of the Constitution, which prohibits "investigation into one's ideas" and subjecting that person to aggression or questioning "for merely holding an opinion". In its concluding observations, the Committee on the Elimination of Racial Discrimination noted that the "'gozinesh' criterion … may limit employment opportunities and political participation for, inter alios, persons of Arab, Azeri, Balochi, Jewish, Armenian and Kurdish communities" (CERD/C/IRN/CO/18-19, para. 16). In its comments, the Government noted that "employment in government sectors is based on academic, professional, and ethical qualifications, and that all ethnic, linguistic and similar groups may be recruited by the government".

C. National legal framework applicable to ethnic minorities

43. Article 19 of the Constitution contains a guarantee of equality for all the people of the Islamic Republic of Iran, regardless of ethnic group or tribe, and states that "colour, race, language, and the like, do not bestow any privilege". Article 15 of the Constitution identifies Persian as the official language but permits the use of "regional and ethnic languages in the press, the mass media, and the teaching of their literature at schools, alongside the Persian language …". The narrow scope of recognized uses of non-Persian languages in the Constitution effectively means the right of children from linguistic minorities to be educated in their mother tongue is not fully protected. In its comments, the Government noted that the University of Kurdistan had begun its enrolment of students of the Kurdish language and literature from October 2015 and the University of Tabriz enrolled students, at the Bachelor level, of the Azeri language from October 2016. The Government also stated that Arabic language majors had also been prevalent for years at Iranian universities.

44. In 2016, the Iranian High Council for Human Rights issued a booklet entitled "Some measures taken by the Islamic Republic of Iran on demands of ethnic groups, religious minorities and sects" containing a detailed list of measures taken in each province of Iran in response to reported demands made by minority communities. In 2016, the President of the Islamic Republic of Iran, Hassan Rouhani, issued a 120-point Charter on Citizens' Rights, a Government-endorsed declaration setting out the rights of citizens anchored to the Constitution.[43]

[41] See http://rc.majlis.ir/fa/law/show/92541 (in Persian).

[42] Amnesty International, submission to the Committee on Economic, Social and Cultural Rights, forty-ninth session (2012). Available at https://tbinternet.ohchr.org/_layouts/15/treatybodyexternal/Download.aspx?symbolno=INT%2fCESCR%2fNGO%2fIRN%2f14260&Lang=en.

[43] See http://dublin.mfa.ir/uploads/Charter_on_Citizens_Right_96172.pdf.

45. Considered together with the universal periodic review midterm report (2015–2016) submitted by the Islamic Republic of Iran, the Special Rapporteur notes that specific measures have been taken to improve the situation of ethnic and religious minorities in an effort to implement the 12 accepted recommendations from the second universal periodic review (2014) pertaining to the promotion and protection of ethnic and religious minorities. To cite a few examples, these include the holding of two International Islamic Unity Conferences, in 2015 and 2016, with the presence of Islamic scholars and thinkers from various religions in Tehran; the establishment of the *Al-Hiwar Al-Islami* Assembly (Islamic Talks Assembly) in order to improve familiarity and deepen understanding among followers of Islamic religions; a large number of media (television and radio) programmes focused on ethnic and religious minorities; and a table outlining a "set of rights" for the Baha'is, which includes "Baha'i cemetery" and "work permit issuance".[44]

46. These measures, however, do not alter the fundamentally discriminatory nature of the Constitution, legislation and Islamic Penal Code of the Islamic Republic of Iran, in particular in relation to the country's unrecognized minority communities.[45] In its comments, the Government questioned the accuracy of statistics cited in relation to the estimated population of ethnic minorities in the report but did not offer alternative figures.

D. Human rights situation of religious minorities

Baha'is

47. Over the past 40 years, the Baha'is, considered to be the largest non-Muslim and unrecognized religious minority in the Islamic Republic of Iran, numbering an estimated 350,000, have suffered from the most egregious forms of repression, persecution and victimization (see A/HRC/40/24 and A/HRC/40/67). Since 1979, more than 200 Baha'is have been executed, solely on the basis of their religious beliefs, with nearly half of them representing the elected members of the local and national Baha'i governing councils.[46] Regarded by the Iranian authorities and by the Iranian criminal justice system as "unprotected infidels",[47] Baha'is have been murdered with impunity and violations of their human rights have not been investigated.

48. The Special Rapporteur notes that the Islamic Republic of Iran no longer executes Baha'is solely on the basis of their religion. The constant threat of raids, arrests and detention or imprisonment, however, remain the main features of the country's persecution of Baha'is. Since August 2005, more than 1,168 Baha'is have been arrested and charged with vaguely worded offences. Given that the Baha'i faith is regarded as a "misguided sect" and Baha'i worship and religious practices are deemed heresy, they frequently face charges such as "breaching national security", "propaganda against the holy regime of the Islamic Republic of Iran" or "propaganda activities against the regime in the interests of the Baha'i sect". The Government, in its comments, noted that "all Baha'is can freely perform their personal rituals".

[44] Islamic Republic of Iran, High Council for Human Rights, *UPR Mid-Term Report 2015–2016*, pp. 122–129. Available at https://lib.ohchr.org/HRBodies/UPR/Documents/Session20/IR/Iran2ndCycle.pdf.

[45] See Islamic Republic of Iran, High Council for Human Rights, *Some Measures Taken by the Islamic Republic of Iran on Demands of Ethnic Groups, Religious Minorities and Sects* (2016).

[46] Non-governmental organization (NGO) submission.

[47] See https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/572660/CPIN.IRN.Baha_is.v.2-November-2016.pdf.

49. As of the end of June 2019, there were reportedly 49 Baha'is arbitrarily detained in the Islamic Republic of Iran.[48] There were a total of 95 Baha'is reportedly arrested in 2018, compared with at least 84 in 2017 and 81 in 2016. This suggests that, while the number of such arbitrary arrests each year may fluctuate, the persecution is not subsiding.[49]

50. In 1991, a secret official document was prepared with a view to the gradual elimination of the Baha'is as a recognizable entity in Iran. The document, written by the Supreme Revolutionary Cultural Council of the Islamic Republic of Iran, was approved by the Supreme Leader (E/CN.4/1993/41). The document set out specific guidelines on how to deal with the "Baha'i question", including instructions that they be expelled from schools and denied employment and positions of influence.

51. The secret official document continues to remain in force. A 2007 letter from the Security Unit of the Public Place Supervision Office of the Islamic Republic of Iran to police commanders throughout the country contained instructions on the banning of specific professions for Baha'is, with a view to halting their entry to "high earning businesses".[50] In its comments, the Government noted that "Baha'is are very active in the economic field, despite their small population, and are engaged in manufacturing, trade and services".

52. Since 2013, there have been more than 803 incidents of violations of economic rights of the Baha'is, including arbitrary shop closures, unfair dismissals from employment and the actual or threatened revocation of business licences.[51] Iranian authorities have also continued to seal and permanently close Baha'i-owned businesses following temporary closures during Baha'i holy days in Semnan and Mazandaran Provinces, as well as in Shiraz in Fars Province. In its comments, the Government stated that the ban on work in governmental offices is merely stipulated for the organizational Baha'is. If an individual is not a member of the dissolved illegal Baha'i organization, "he or she shall not be deprived from government employment".

53. Baha'i cemeteries have been desecrated and Baha'is have not been allowed to bury their dead in accordance with their religious laws. In some cases, the Special Rapporteur heard that wasteland had been designated by the authorities as Baha'i burial sites. The Special Rapporteur also received information on hateful speeches, school textbooks vilifying the Baha'i faith and statements made against the Baha'is, including by officials. In its comments, the Government attributed the closure of local cemeteries to population growth and urban development plans. Local cemeteries in Tehran and other major cities had been turned into parks and cultural buildings. The Government stated that the Baha'is had not been singled out for discrimination.

54. First-hand testimonies heard by the Special Rapporteur included accounts of Baha'i's arrested by Iranian authorities on the basis of false accusations of spying for foreign States and "using their business to change Islamic culture". One Baha'i was held in solitary confinement for almost three weeks following his arrest and forced to close his business after serving a prison sentence. The Special Rapporteur also heard of arrests made on false accusations of selling trafficked goods and of people being sentenced to up to five years of imprisonment, notwithstanding proof that all the suppliers were legal.

55. On 1 January 2019, the court of appeal of Isfahan reportedly condemned, in separate judgments, nine Baha'i citizens to a total of 48 years of prison. They had

[48] NGO submission. See also A/HRC/WGAD/2017/9.
[49] See www.bic.org/focus-areas/situation-iranian-bahais/current-situation.
[50] See www.bic.org/sites/default/files/pdf/iran/overview_of_persecution-0817_1.pdf.
[51] See www.bic.org/sites/default/files/pdf/iran/overview_of_persecution-0119_2.pdf.

been charged with "membership of the illegal Baha'i community and propaganda against the regime by spreading the Baha'i faith in the society".[51]

56. The Special Rapporteur also heard first-hand testimonies from Baha'i members who had restrictions on their access to higher education. Those making applications to enter university were rejected owing to their files being deemed "incomplete" without further explanation or opportunity to remedy the alleged shortcoming with the application.[52] In some cases, applicants who challenged their rejections were not given answers. In other cases, officials informed them that they were rejected on account of their religion. Some students were admitted but later expelled.[53] In 2019, 17 students of the Baha'i faith had been reportedly expelled from Iranian universities as of June.[54] In response, the Government noted that "the presence of tens of Baha'is in all levels of higher education in Iran's universities is a confirmation for the fact that individuals are not treated based on holding a certain belief".

Christian converts

57. An estimated 300,000 to 350,000 Muslim converts to Christianity live in the Islamic Republic of Iran.[55] Although Christianity is a recognized religion under the Constitution, the Iranian authorities do not recognize converts to Christianity and consider them apostates. As a result, Christian converts are not granted access to officially recognized Christian churches, and this forces them to gather clandestinely in informal "house churches".[56] Many Christian converts do not make their faith public for fear of persecution. Once identified, Christian converts risk arrests, detention and repeated interrogations about their faith.[57]

58. Iranian intelligence services have reportedly continued to closely monitor churches and harass congregations, in some cases with regular checks of identity documents of attendees, to ensure that only members of recognized Armenian or Assyrian Christian minorities attend.[55] There have also been dozens of reports of arbitrary arrests and detention of Christian converts.[58]

59. Most Christian converts who have been arrested and detained have been charged with "propaganda against the system", "propagation of Zionist evangelical Christianity" or "administering and managing the home churches". On 10 February 2019, one pastor was arrested in Rasht by Islamic Revolutionary Guard members who entered the gathering where he was leading a service, detaining him after it had concluded. The pastor has been arrested and tried on several occasions in the cities of Rasht, Shiraz and Karaj since 2006.[59]

60. Special procedures mandate holders issued a public statement in February 2018 expressing concern at the prison sentences of between 10 and 15 years imposed upon

[52] See www.hrw.org/news/2018/10/16/iran-arrests-harassment-bahais.

[53] See https://iranhumanrights.org/2018/09/in-just-six-months-iranian-universities-expelled-50-bahai-students-for-their-religious-beliefs/; https://iranhumanrights.org/2018/05/you-know-what-your-problem-is-young-man-expelled-from-iranian-university-for-his-bahai-faith/.

[54] NGO submission.

[55] See United Kingdom of Great Britain and Northern Ireland, Home Office, "Country policy and information note. Iran: Christians and Christian converts" (May 2019). Available at https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/805075/Iran_-_Christians-Converts_-_CPIN_-_v5.0.pdf.

[56] See https://landinfo.no/wp-content/uploads/2018/04/Iran-Christian-converts-and-house-churches-1-prevalence-and-conditions-for-religious-practice.pdf.

[57] See www.telegraph.co.uk/news/2018/12/10/iran-arrests-100-christians-growing-crackdown-minority/.

[58] See www.meconcern.org/2019/01/31/iran-arrests-of-five-female-christian-converts/; https://articleeighteen.com/news/166/.

[59] See www.meconcern.org/2019/02/21/iran-three-more-converts-detained-in-rasht/.

pastor Victor Bet Tamraz and two other members of his congregation for allegedly "conducting evangelism" and "illegal house church activities".[60] The pastor's wife and his son were also charged with acting against national security. Since then, they have all reportedly been freed on bail, but remain under close surveillance pending a further joint hearing at an unspecified date.[61]

61. According to information received from a physician who has reportedly recently treated former detainees, Christian converts are subjected to sexual abuse and ill-treatment. One young woman had reportedly been repeatedly subjected to sexual assault by a policeman, leaving her traumatized and requiring treatment for post-traumatic stress disorder in a psychiatric hospital. In a separate case, a young male Christian convert detained in Tehran was allegedly hit with wooden sticks and his head banged against a wall.

Sunnis

62. The Sunni minority in the Islamic Republic of Iran constitutes an estimated 10 per cent of the population[62] and is subjected to a range of discriminatory laws and practices. The Constitution does not allow Sunnis to serve as the Supreme Leader or as members of the Guardian Council because the holders of these positions must be Shi'a Muslims.[63] Non-Shi'as cannot become members of the Assembly of Experts and the Expediency Council (arts. 109, 111 and 115 of the Constitution). Sunnis can serve as judges in the general courts but not in the Revolutionary Courts. Institutionalized discrimination against Sunnis is also reflected by the absence of Sunnis appointed to senior, influential government positions. While Sunnis can enter parliament as Muslims, they still face restrictions.[64] In its comments, the Government noted that there are currently 24 Sunni members of parliament in the Islamic Consultative Assembly and that "many provincial offices have also been assigned to them".

63. In Tehran, Sunnis have reportedly been refused permission to construct a mosque since 1979. Sunnis also face difficulties in repairing existing mosques.[65] In its comments, the Government noted that there were more than 10,000 Sunni mosques and more than 3,000 Sunni religious schools in the country. In relation to the construction of prayer rooms for Sunnis in Tehran, the Government stated that "there are not enough Sunnis living in Tehran in one place or neighbourhood".

64. In the past two years alone, more than 53 Sunnis, including clerics, have reportedly been arrested and a number of them charged with national security-related charges, including "propaganda against the state" and "membership in Salafist groups". In response, the Government stated that "no arrests are made in the country, by no means, due to being the follower of a particular religion".

Gonabadi dervishes

65. The Gonabadi dervishes are the largest of the unrecognized Sufi orders in the Islamic Republic of Iran and are considered a deviant sect by the Iranian religious establishment. Their places of worship have been demolished, and hundreds of Gonabadi dervishes have been detained and arrested, including following

[60] See www.ohchr.org/en/NewsEvents/Pages/DisplayNews.aspx?NewsID=22629&LangID=E.
[61] A/73/299, para. 58. See also https://barnabasfund.org/en/news/iranian-pastor-and-family-watched-controlled-and-wiretapped-while-waiting-prison-sentence.
[62] See www.cia.gov/library/publications/the-world-factbook/geos/ir.html.
[63] See www.wipo.int/edocs/lexdocs/laws/en/ir/ir001en.pdf.
[64] See www.iranhumanrights.org/2017/05/irans-top-sunni-cleric-urges-president-rouhani-to-appoint-religious-minorities-to-cabinet/.
[65] See https://minorityrights.org/wp-content/uploads/2018/03/Rights-Denied-Violations-against-ethnic-and-religious-minorities-in-Iran.pdf.

demonstrations in Tehran in February 2018 in protest of the arrest of a Gonabadi dervish leader. In its comments, the Government noted that "the arrest of a number of individuals was not as a result of their peaceful protest or mere expression of opinion".

66. The Special Rapporteur is deeply concerned about the situation of members of the Gonabadi dervish community who remain in detention in Gharchak prison without access to their lawyers since the protests of February 2018 (A/73/299, para. 60). This includes at least 10 women serving prison sentences of up to five years. In June 2018, the Gonabadi dervish women in detention went on a hunger strike, which lasted 16 days, to protest their ill-treatment and beatings in prison. One of the detained women, who is serving a two-year sentence, was reportedly sentenced to a further 148 lashes in January 2019 for speaking out about the denial of medical treatment and poor living conditions in the prison.[66] In April 2019, another detainee was allegedly beaten by a fellow inmate after prison authorities had reportedly promised the attacker a case review if she carried out the attack on her prison-mate. She is among four other detainees sentenced on national security-related charges who have reportedly been placed in the same ward as prisoners convicted of drug-related charges, theft and social crimes in contravention of Gharchak prison's own rules and regulations.[67]

67. On 13 March 2019, Amir Noori, a member of the Gonabadi dervish community, was sentenced to five years in prison on charges of "assembly and colluding with acting against the internal security of the country and disrupting of public order". He lost one of his fingers during the 2018 protests and was arrested in the Golestan-e-Haftom clashes. Meanwhile, the spiritual leader of the Gonabadi Sufi order in the Islamic Republic of Iran remains under house arrest following the protests led by members of the Gonabadi order in Tehran in February 2018.

Yarsans

68. The Yarsan community comprises predominately ethnic Kurds who are followers of a syncretic religion that originated in the fourteenth century. Found mostly in the western provinces of the Islamic Republic of Iran, including Kermanshah, their population is estimated to be approximately 1 million. Lacking official recognition as a religious minority, the Yarsanis are sometimes referred to by the Government as a "misguided cult". They have also reportedly faced arbitrary arrest, harassment and detention based on national security-related charges such as "propaganda against the state".[65] In its comments, the Government noted that "no one is prosecuted merely because of his or her belief".

69. On 25 September 2018, the grandson of a Yarsani leader was allegedly killed under torture in Hamedan prison. He had been detained for one year on charges of "spreading propaganda against the state".[68]

70. The Special Rapporteur received a number of reports concerning discrimination of Yarsan members that affect their everyday lives. According to information received from Yarsan members, individuals have been dismissed from employment after their faith had been discovered. The Special Rapporteur also received information regarding Yarsans being forced to shave their moustache (a holy symbol for the Yarsan community) when they refused to pray during military service. The Government stated that "the soldiers recruited from amongst the members of this sect are exempt from the requirement to shave their moustache during their military service".

[66] See https://iranhumanrights.org/2019/04/sufi-woman-beaten-by-inmate-in-gharchak-prison/.

[67] The five detainees are Shokoufeh Yadollahi, Elham Ahmadi, Sepideh Moradi, Sima Entessari, and Shima Entessari.

[68] See https://iran-hrm.com/index.php/2018/09/29/detained-yarsan-man-tortured-to-death-in-iran/.

71. The grievances expressed by the Yarsan community further included restricted access to higher education and the denial of public sector jobs through the application of *gozinesh* requirements, as well as the lack of Yarsan representation at the local or national levels of Government.[69]

72. Public notaries and registries reportedly do not recognize Yarsan marriage rituals, meaning that marriages are undertaken in the Shi'a tradition. Yarsan members have spoken of their fear of speaking publicly about their faith or proselytizing, for fear of being arrested, tortured or killed.

Interuniversalism

73. Followers of Interuniversalism (*Erfan Halgheh*), a spiritual movement led by Mohammad Ali Taheri that is considered "a misguided and deviant sect" by the Iranian authorities, have also been subjected to persecution. Its members have been arrested and detained on spurious charges, and Mr. Taheri was previously sentenced to death in August 2015 by a Revolutionary Court on a charge of "corruption on earth", a sentence that was subsequently overturned. Mr. Taheri was released in April 2019 but reportedly has been under close surveillance and received death threats since then.[70] On 15 May, the Appeals Court upheld a suspended 91-day prison sentence.[71]

74. In a separate case, in February 2019, another believer of Interuniversalism was arrested and sentenced by a Revolutionary Court in Tehran to five years in prison for "acting against national security".[72] She remains in detention.[73] In its comments, the Government noted that any confrontation with the individuals associated with the sect has been a consequence of their illegal acts, including obtaining property through illicit actions, unauthorized use of scientific titles and other unlawful acts.

E. Human rights situation of ethnic minorities

Arab Ahwazis

75. The Arab Ahwazi population of the Islamic Republic of Iran is estimated to be almost 5 million, a majority of whom are Shi'a. Arab Ahwazis have continued to be subjected to violations of their rights, including the violation of the right to freedom of assembly and association and the right to freedom of opinion and expression. Iranian authorities have reportedly applied broad national security laws to target human rights defenders and activists, including those helping with flood relief efforts during 2019 in parts of Golestan, Khuzestan and Sistan and Baluchistan Provinces.[74] At least 70 Arab Ahwazi flood relief volunteers were arrested and detained in Khuzestan by Iranian security services for unknown reasons after they had attempted to bring food and blankets to flood victims in Khuzestan Province.[75]

76. The Special Rapporteur also received information that the Islamic Revolutionary Guard Corps has been involved in redirecting floodwater towards local farms in order to preserve oil reserves and exploitation equipment in Khuzestan Province. The ensuing confrontations with local Arab citizens reportedly resulted in

[69] See www.iranhumanrights.org/2017/05/most-yarsani-religious-minority-candidates-disqualified-from-irans-2017-councils-elections/.
[70] See www.ohchr.org/EN/NewsEvents/Pages/DisplayNews.aspx?NewsID=16292.
[71] See www.iranhumanrights.org/2019/07/evin-prison-protesters-receive-suspended-prison-sentences/.
[72] See www.hra-news.org/2019/hranews/a-19401/ (in Persian).
[73] See https://ir.voanews.com/a/iran-prisoner-activist/4890981.html (in Persian).
[74] See www.aodhr.org/en/aodhr-condemns-iranian-terrorism-towards-relief-committees-in-ahwaz/.
[75] NGO submission.

injuries and the killing of one Arab farmer from Khuzestan.[76] In other cases affecting the Arab Ahwaz community, a 17-year-old Ahwaz male was arbitrarily detained in Kianabad in February 2019 for peaceful expression online and participation in protests concerning environmental issues in his region. Meanwhile, 24 social media users reportedly arrested by Iranian police in April and charged with "broadcasting distracting news and flood rumours" remain detained in Khuzestan.[77]

77. Specific Arab cultural institutions have also been banned, with Ahwazis prosecuted for "Arab solidarity activities". Arab Ahwazis identifying as Sunnis have also been arrested and detained on charges of "corruption on earth" and "enmity against God". On 20 March 2019, the Director of the Ahwazi cultural institution "Nasr" was arrested in Ahwaz after directing a musical clip called "Vahdat" that empowered and represented the Arabic culture and unity of the Arab people of Ahwaz.[78] On 28 April, another member of Nasr was transferred[79] to Sheiban prison in Ahwaz. Hossein Eshghian[80] is another member of Nasr who was summonsed on 21 March and interrogated.[81]

78. Following the attack on a military parade on 22 September 2018 attributed to members of the Arab Ahwazi community, the Iranian authorities arrested hundreds of people from the community in Khuzestan Province in October 2018. It has been reported that 22 men were executed in secret in November. The governor of Khuzestan Province denied these allegations on 12 November, calling them "complete lies".[82]

Azerbaijani Turks

79. There are an estimated 15 million Azerbaijani Turks, also referred to as Azeris, in the Islamic Republic of Iran, found mostly in West Azerbaijan, East Azerbaijan, Ardabil and Zanjan Provinces. Azerbaijani Turks are the largest ethnic minority in the country, comprising mostly Shi'a Muslims.

80. Based on information received by the Special Rapporteur, there are currently at least 82 Azerbaijani Turks arbitrarily detained in the Islamic Republic of Iran on national security-related charges with sentences of up to six years, including six Azerbaijani Turks held under interrogation. This figure also includes activists and supporters of the East Azerbaijani football club Tiraxtur who were arrested and detained for making pro-Azeri chants during a match between Tiraxtur and Persepolis of Tehran on 2 May 2019 at Sehend stadium in Tebriz.[83]

81. In a separate case, on 2 July 2018, an ethnic Azeri human rights activist, poet and writer, Abbas Lisani, was arrested without charge. He initially remained in detention for just under two weeks before his release on a 500 million *rial* bail. Iranian authorities rearrested him on 5 January 2019 and temporarily released him the next day, only to arrest him again on 15 January. Charges formally made against him on 26 February include the reportedly false allegation of promoting the armament of the West Azerbaijani people, threatening national security, forming an illegal group and

[76] See www.voanews.com/middle-east/voa-news-iran/activists-irans-revolutionary-guards-fire-protesters-deadly-flood.
[77] See https://iran-hrm.com/index.php/2019/04/13/iran-arrests-24-people-for-online-postings-of-disastrous-flooding/.
[78] See www.hra-news.org/2019/hranews/a-19672/ (in Persian).
[79] See www.hra-news.org/2019/hranews/a-20000/ (in Persian).
[80] See www.hra-news.org/2019/hranews/a-19673/ (in Persian).
[81] NGO submission.
[82] NGO submission.
[83] NGO submission.

propaganda against the system.[84] Based on information received, at the time of writing this report, Mr. Lisani remains in detention and is on hunger strike.[85]

82. Other Azerbaijani Turks arbitrarily detained includes a young law student detained by the Iranian authorities since 3 July 2018. He has been arrested on 30 occasions. In three cases, he has been accused of publicity activities against the system of the Islamic Republic of Iran in relation to "separatism in Azerbaijan".[86]

83. In April 2019, the 10-month prison sentence against an Azeri activist, Sahand Maali, was upheld by the Court of Appeal of East Azerbaijan Province. He was convicted for "propaganda against the regime through the distribution of an invitation to a rally in Babak castle on the promotion of ethnic groups' rights".[87]

Baluchis

84. The ethnic Baluchi population of the Islamic Republic of Iran is estimated to be 2 to 3 million. Most Baluchis live in Sistan and Baluchistan Province, one of the most impoverished provinces in the country, with the vast majority of the population living below the national poverty line.[88] Mostly Sunni Muslims, the Baluchis face intersectional discrimination.[65]

85. The Special Rapporteur heard first-hand accounts describing the basic infrastructure as minimal with no running water. In the absence of educational facilities throughout the region, many of the inhabitants need to travel to Zahedan, the provincial capital, for post-primary education and hospital care. A lack of official documentation or proof of citizenship has affected the right to education for the predominantly Sunni Baluch population of Sistan and Baluchistan Province.[65] According to information received, this lack of documentation appears to be rooted in a lack of historical interaction with State institutions. One member of parliament has estimated that up to 36,000 children in the province lacked identification and were deprived of the right to education.[89] The Government noted in its comments that, over the course of 40 years, various economic and cultural programmes have been implemented in Sistan and Baluchistan Province.

Kurds

86. The Kurdish population of the Islamic Republic of Iran is estimated to be between 8 and 10 million, concentrated in the north-western provinces of Kurdistan, West Azerbaijan, Kermanshah and Ilam. These provinces are characterized by a lack of economic development and high unemployment rates. There are very few Kurdish senior officials in government and the Kurdish language is taught only by civil society groups, not in official schools.[65]

87. Kurdish political prisoners charged with national security offences represent almost half of the total number of political prisoners in the Islamic Republic of Iran and constitute a disproportionately high number of those who received the death penalty and are executed.[65]

88. In 2018, 828 Kurdish citizens were arrested, many of whom were sentenced to long years of imprisonment and were charged with crimes relating to civic activism and membership in Kurdish political parties. In the first six months of 2019, 199 Kurdish

[84] See https://iranhumanrights.org/2019/03/irans-intelligence-ministry-slaps-azeri-rights-activist-with-new-charges-claim-hes-organizing-protests-from-prison/.
[85] NGO submission.
[86] See www.amnesty.org/download/Documents/MDE1388892018ENGLISH.PDF.
[87] NGO submission.
[88] See www.fdd.org/analysis/2018/12/18/new-report-shows-increased-poverty-in-iran/.
[89] See https://en.radiofarda.com/a/iran-school-drop-out-among-girls/28726094.html.

citizens were arrested. A total of 17 of those prisoners were women, 115 were arrested for charges relating to membership in Kurdish political parties, 24 were charged in relation to their civil activities, 7 were arrested for organizing Nowruz celebrations, 22 were environmental activists, 7 were arrested for labour activities, 3 were charged for their religious belief and activities and 4 were charged for managing social networks such as Telegram. At present, 55 of the 199 Kurdish detainees were sentenced to up to 15 years in prison. At least 17 Kurdish prisoners were executed: 14 for murder and 3 for drug-related crimes.[90]

89. Given that Kurdish is not recognized as an official language for administrative purposes, official documents, interrogations and proceedings are all in Persian and simultaneous interpretation is reportedly not permitted. While Kurdish lawyers can assist in these language issues, individuals who are arrested often do not have access to lawyers during the interrogation stage and those charged with national security-related offences are made to choose a lawyer from a list vetted by the judiciary.

90. The Special Rapporteur was informed that State schools do not offer education in Kurdish, which is available only to students through private classes, reducing the accessibility and affordability of Kurdish education. The Government has also placed restrictions by making it a requirement that teachers obtain State permits to teach the Kurdish language. The Special Rapporteur is also concerned about the reported persecution of Kurdish language teachers, including one young female teacher, Zara Mohammadi, who was arrested and detained by the Iranian authorities on 23 May 2019 for organizing private tuition without a permit in Sanandaj.[91]

Excessive use of force against and extrajudicial killings of Baluchis and Kurds

91. The Special Rapporteur remains deeply concerned about the continuing use of excessive force against and extrajudicial killings of border couriers who often reside in the impoverished provinces of Kurdistan, Kermanshah, Sistan and Baluchistan and Western Azerbaijan. Many of them transport goods on their back, on foot, horses or mules, under difficult conditions and often not in the possession of work licences. Those working in the Kurdistan region also often take routes littered with landmines at high risk of serious injury or death. The "Sokhtbaran" or fuel couriers in Baluchistan have experienced a similar fate. It is estimated that up to 84,000 Kulbarans (Kurdish border couriers) make the crossings annually.

92. According to information received, 75 border couriers were killed and 177 injured in 2018. Among them, 42 individuals were victims of direct shootings by security forces and 6 of them fell from the mountains after being chased by the security forces. A total of 14 died or lost a limb owing to the cold weather conditions and 4 others were wounded as a result of landmine explosions.[92] In the first six months of 2019, at least 42 border couriers were reportedly killed and 74 injured.[93]

93. In May 2019, two Kulbars, 23-year-old Sina Mam-Hamidi and 55-year-old Naser Olian, were injured in Marivan and Urmia and two others, Khaled Salimi and Akam Bardel, killed by patrol police in Piranshahr.[94] In all those cases, the couriers were unarmed and posed no imminent threat of death or serious injury at the time of their killing or injury, and the use of force and firearms is therefore unlawful under

[90] NGO submission.
[91] See https://twitter.com/hashtag/Freedom_for_ZaraMohammadi?src=hash.
[92] See http://kmmk-ge.org/sd/wp-content/uploads/2019/05/KMMK-G-Periodic-Summary-Report-for-the-Attention-of-the-OHCHR-Desk-of-the-UN-Special-Rapporteur-on-the-Situation-of-Human-Rights-in-Iran.pdf.
[93] NGO submission.
[94] See www.en-hrana.org/four-kulbars-were-killed-or-injured-by-police-shot.

international law.[95] In its comments, the Government clarified that regulations in place to prosecute violators of the law did not mean that a border officer could "shoot at any lawbreaker". The Government noted that some of the porters carry narcotic drugs or pistols, which makes it difficult to recognize an armed smuggler in the border area.

Landmine-related deaths

94. Landmines continue to pose a critical threat to the right to life of minorities in the Islamic Republic of Iran.[65] An estimated 20 million landmines were placed in the country during the 1980–1988 war with Iraq and in the course of internal armed conflicts between the Islamic Republic of Iran and Kurdish non-State combatants in the 1980s. West Azerbaijan, Kurdistan, Kermanshah and Ilam Provinces, which have large Kurdish majority populations, and Khuzestan Province, which has an Arab majority population, have continued to see the most deaths and serious injuries from landmine explosions.[96] In the first six months of 2019, there were 4 fatalities and 15 people were reportedly injured owing to landmine explosions.[97] On 2 March, a 15-year-old girl was killed in an explosion in Dasht Abad, Dehloran, Ilam province.[98] NGOs point out that the Government's approach to demining has been insufficient, including its support for and rehabilitation of landmines victims.[65]

95. In its comments, the Government noted that considerable mine-sweeping measures had taken place in Khuzestan, Ilam, Kermanshah, Kurdistan and West Azerbaijan Provinces. It referred to the establishment of an international humanitarian mine-sweeping training centre, as well as specialized training relating to mine-sweeping operations, and the discovery of nearly 500,000 mines and explosives in an area of more than 35,000 ha of contaminated lands in the aforementioned provinces during the period 2015–2018.

IV. Recommendations

96. **The Special Rapporteur recommends that the Supreme Leader and relevant legislative institutions:**

(a) **Amend article 13 of the Constitution to ensure that all religious minorities and those who do not hold any religious beliefs are recognized and able to fully enjoy the right to freedom of religion or belief;**

(b) **Amend all articles in the Islamic Penal Code that discriminate on the basis of religion or belief;**

(c) **Amend existing legislation to abolish the death penalty for crimes not meeting the "most serious crime" threshold according to international human rights law;**

(d) **Urgently amend legislation to prohibit the execution of persons who committed a *hudud* or *qisas* crime while under 18 years of age and who, accordingly, are children;**

(e) **Urgently amend the legislation to commute all existing sentences for child offenders on death row;**

(f) **Repeal the established *gozinesh* requirements and any other policies that condition access to employment on the basis of individual beliefs, in line with the Constitution.**

[95] See www.ohchr.org/en/professionalinterest/pages/useofforceandfirearms.aspx.
[96] NGO submission.
[97] NGO submission.
[98] NGO submission.

97. **The Special Rapporteur recommends that the Government of the Islamic Republic of Iran:**

(a) **Permit the United Nations Special Rapporteur on the situation of human rights in the Islamic Republic of Iran to enter the country for monitoring visits;**

(b) **Ensure that all persons accused of any crime are afforded due process and fair trial guarantees, including access to a lawyer of their choosing during all stages of the judicial process and are provided with legal aid and access to interpreters during court proceedings;**

(c) **Ensure that human rights defenders, including women human rights defenders, and human rights lawyers and journalists are not threatened with or subjected to intimidation, harassment, arbitrary arrest, deprivation of liberty or other arbitrary sanction, and release all those detained in connection with their work;**

(d) **Immediately release all dual and foreign nationals arbitrarily detained in the Islamic Republic of Iran;**

(e) **Ensure that all individuals within its territory and subject to its jurisdiction are treated equally before the law without distinction of any kind such as race, sex, language, religion, sexual orientation and political or other opinion;**

(f) **In accordance with article 18 of the International Covenant on Civil and Political Rights, to which the Islamic Republic of Iran is a party, ensure that everyone has the right to freedom of thought, conscience and religion, including the freedom to have or to adopt a religion or belief of their choice, or not to have or adopt a religion, and the freedom, either individually or in community with others and in public or private, to manifest their religion or belief in worship, observance, practice and teaching;**

(g) **Refrain from targeting members of recognized and non-recognized religious minorities with national security-related charges and end the criminalization of the peaceful expression of faith;**

(h) **Cease the indiscriminate killings of border couriers and take measures to regularize their work;**

(i) **Allow places of worship for all religious minorities to be opened, including Sunni mosques and new churches throughout the country;**

(j) **Refrain from persecuting peaceful religious gatherings in private homes and other premises, refrain from convicting religious leaders and cease the monitoring of citizens on account of their religious identity;**

(k) **Allow all students of ethnic and recognized and non-recognized religious minorities full and equal access to State universities on the basis of academic merit;**

(l) **Ensure that minority languages are made available to children of ethnic minorities at the primary school level;**

(m) **Develop polices and direct resources for the economic, social, cultural and political development of areas populated by the Sunni minority, including Kurds, Baluchis and Azeris;**

(n) **Implement all the previous recommendations made by the Special Rapporteur on the situation of human rights in the Islamic Republic of Iran.**